

UNITED STATES DISTRICT COURT

for the

Middle District of Florida

_____ Tampa _____ Division

DAVIS, MATTHEW AARON

Case No. _____

(to be filled in by the Clerk's Office)

Plaintiff(s)

(Write the full name of each plaintiff who is filing this complaint. If the names of all the plaintiffs cannot fit in the space above, please write "see attached" in the space and attach an additional page with the full list of names.)

-v-

PASCO COUNTY

(See attached)

Defendant(s)

(Write the full name of each defendant who is being sued. If the names of all the defendants cannot fit in the space above, please write "see attached" in the space and attach an additional page with the full list of names. Do not include addresses here.)

Jury Trial: (check one) ☐ Yes ☐ No

COMPLAINT FOR VIOLATION OF CIVIL RIGHTS

(Non-Prisoner Complaint)

NOTICE

Federal Rules of Civil Procedure 5.2 addresses the privacy and security concerns resulting from public access to electronic court files. Under this rule, papers filed with the court should *not* contain: an individual's full social security number or full birth date; the full name of a person known to be a minor; or a complete financial account number. A filing may include *only*: the last four digits of a social security number; the year of an individual's birth; a minor's initials; and the last four digits of a financial account number.

Except as noted in this form, plaintiff need not send exhibits, affidavits, grievance or witness statements, or any other materials to the Clerk's Office with this complaint.

In order for your complaint to be filed, it must be accompanied by the filing fee or an application to proceed in forma pauperis.

I. The Parties to This Complaint**A. The Plaintiff(s)**

Provide the information below for each plaintiff named in the complaint. Attach additional pages if needed.

Name	MATTHEW AARON DAVIS		
Address	4624 Charter St		
	Zephyrhills	FL	33541
	<i>City</i>	<i>State</i>	<i>Zip Code</i>
County	Pasco		
Telephone Number	656-212-3599		
E-Mail Address	DavisMatthewA2024@gmail.com		

B. The Defendant(s)

Provide the information below for each defendant named in the complaint, whether the defendant is an individual, a government agency, an organization, or a corporation. For an individual defendant, include the person's job or title (if known) and check whether you are bringing this complaint against them in their individual capacity or official capacity, or both. Attach additional pages if needed.

Defendant No. 1

Name	PASCO COUNTY STATE ATTORNEY OFFICE		
Job or Title <i>(if known)</i>			
Address	3850 live oak		
	Dade City	FL	33525
	<i>City</i>	<i>State</i>	<i>Zip Code</i>
County	Pasco		
Telephone Number	(352) 521-4542		
E-Mail Address <i>(if known)</i>			

☐ Individual capacity ☐ Official capacity

Defendant No. 2

Name	PASCO COUNTY SHERIFF		
Job or Title <i>(if known)</i>			
Address	8700 Citizens Dr		
	New port Richey	FL	34654
	<i>City</i>	<i>State</i>	<i>Zip Code</i>
County	Pasco		
Telephone Number	727-847-8120		
E-Mail Address <i>(if known)</i>			

☐ Individual capacity ☐ Official capacity

Defendant No. 3

Name PASCO COUNTY PUBLIC DEFENDER OFFICE

Job or Title *(if known)*

Address 38050 live oak

Dade City FI 33525

City State Zip Code

County Pasco

Telephone Number (352) 521-4542

E-Mail Address *(if known)*

☐ Individual capacity ☐ Official capacity

Defendant No. 4

Name PASCO COUNTY CLERK OF COURT

Job or Title *(if known)*

Address 38050 live oak

Dade City FI 33525

City State Zip Code

County Pasco

Telephone Number (352) 521-4542

E-Mail Address *(if known)*

☐ Individual capacity ☐ Official capacity

II. Basis for Jurisdiction

Under 42 U.S.C. § 1983, you may sue state or local officials for the “deprivation of any rights, privileges, or immunities secured by the Constitution and [federal laws].” Under *Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics*, 403 U.S. 388 (1971), you may sue federal officials for the violation of certain constitutional rights.

A. Are you bringing suit against *(check all that apply)*:

☐ Federal officials (a *Bivens* claim)

☒ State or local officials (a § 1983 claim)

B. Section 1983 allows claims alleging the “deprivation of any rights, privileges, or immunities secured by the Constitution and [federal laws].” 42 U.S.C. § 1983. If you are suing under section 1983, what federal constitutional or statutory right(s) do you claim is/are being violated by state or local officials? 1st, 2nd, 4th, 5th, 6th, 8th, 14th Amendments to include a Pose Comitatus Act violation and parental rights under *Troxel v. Granville* (see attached)

C. Plaintiffs suing under *Bivens* may only recover for the violation of certain constitutional rights. If you are suing under *Bivens*, what constitutional right(s) do you claim is/are being violated by federal officials?

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- D. Section 1983 allows defendants to be found liable only when they have acted “under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia.” 42 U.S.C. § 1983. If you are suing under section 1983, explain how each defendant acted under color of state or local law. If you are suing under *Bivens*, explain how each defendant acted under color of federal law. Attach additional pages if needed.

PASCO COUNTY SHERIFF is a law enforcement agency in PASCO COUNTY. PASCO COUNTY CLERK OF COURT, PASCO COUNTY STATE ATTORNEY and PASCO COUNTY PUBLIC DEFENDERS OFFICE are judicial entities of PASCO COUNTY Florida
(see attached)

III. Statement of Claim

State as briefly as possible the facts of your case. Describe how each defendant was personally involved in the alleged wrongful action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If more than one claim is asserted, number each claim and write a short and plain statement of each claim in a separate paragraph. Attach additional pages if needed.

- A. Where did the events giving rise to your claim(s) occur?
All events occurred within Pasco County Florida
(see attached)
-

- B. What date and approximate time did the events giving rise to your claim(s) occur?
Events began on December 9 2020 and lasted thru to current date and time
(see attached)
-

- C. What are the facts underlying your claim(s)? (*For example: What happened to you? Who did what? Was anyone else involved? Who else saw what happened?*)
Plaintiffs children were removed permanently as a result of a false arrest by PASCO COUNTY SHERIFF and were human trafficked. Government agency of PASCO COUNTY to include the CLERK OF COURT, STATE ATTORNEY, and PUBLIC DEFENDERS all facilitated this human trafficking systematically and illegally
(see attached)
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IV. Injuries

If you sustained injuries related to the events alleged above, describe your injuries and state what medical treatment, if any, you required and did or did not receive.

During the time period Plaintiff experienced two gunshot wounds and three broken ribs as a result of negligence of Defendants also extreme amounts of mental anguish and psychological impairment of schizophrenia threw illegal proceeds of monitoring of a state attorney investigation. Also extreme amounts of emotional distress due to the loss of sole custody of my children and loss of all relationships due to investigational gangstalking and electronic harassment.
(see attached)

V. Relief

State briefly what you want the court to do for you. Make no legal arguments. Do not cite any cases or statutes. If requesting money damages, include the amounts of any actual damages and/or punitive damages claimed for the acts alleged. Explain the basis for these claims.

Monetary Damages in the amount of \$354,600.00 for losses accumulated over the last four years under investigation and illegal monitoring

Punitive damages and disciplinary acts against defendants to stop illegal standard of protocol and more federal oversight

Award attorney and court fees accumulated from proceedings

Injunctive relief by returning custody of children to the Plaintiff

Request for military intervention within Pasco County government to ensure the citizens Constitutional rights but more importantly human rights are being upheld. As the fluency of these accusations suggest many years of practice

Thorough Investigation of Defendants past, present and future conduct in regards to removal of children from families

(see attached)



VI. Certification and Closing

Under Federal Rule of Civil Procedure 11, by signing below, I certify to the best of my knowledge, information, and belief that this complaint: (1) is not being presented for an improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation; (2) is supported by existing law or by a nonfrivolous argument for extending, modifying, or reversing existing law; (3) the factual contentions have evidentiary support or, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery; and (4) the complaint otherwise complies with the requirements of Rule 11.

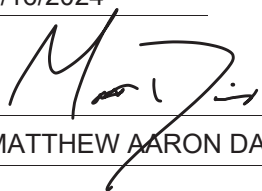
A. For Parties Without an Attorney

I agree to provide the Clerk's Office with any changes to my address where case-related papers may be served. I understand that my failure to keep a current address on file with the Clerk's Office may result in the dismissal of my case.

Date of signing: 12/16/2024

Signature of Plaintiff

Printed Name of Plaintiff


MATTHEW AARON DAVIS

B. For Attorneys

Date of signing: _____

Signature of Attorney

Printed Name of Attorney

Bar Number

Name of Law Firm

Address

City

State

Zip Code

Telephone Number

E-mail Address